

Satyadev Bharti v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 2 February 2023 · WRIT - C No. 3623 of 2023 · **Writ disposed; fresh Supply Code order after hearing.**

HEADNOTE

Where the licensee withdraws a recovery notice founded on a final assessment in an electricity-theft case and undertakes to pass a fresh order after hearing, the writ is disposed of with liberty to pass that order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Satyadev Bharti challenged, before the High Court of Judicature at Allahabad, a recovery notice issued by respondent no. 3. The notice was founded on an order of final assessment in a case of theft of electricity. At the hearing, counsel for the Electricity Department told the Court that the impugned recovery had already been withdrawn, and that the Department would pass a fresh order only after giving the petitioner an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh order after withdrawal of theft-assessment recovery

HOLDING

Once the licensee withdraws the recovery notice issued on a final assessment in an electricity-theft case and states that a fresh order will be passed after hearing, the writ is disposed of with liberty to the respondents to pass that fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

fresh-order-strictly-in-accordance-with-supply-code-procedure

The Court accepted the Electricity Department's withdrawal of the theft-assessment recovery and closed the writ, leaving the Department at liberty to pass a fresh order after hearing, strictly under the procedure prescribed by the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FINAL ASSESSMENT OF ELECTRICITY THEFT, AND THE RECOVERY RAISED ON IT, WERE SUSTAINABLE ON MERITS

The impugned recovery was withdrawn by the Department. The Court did not examine the assessment and left a fresh order, after hearing, to the respondents. ¶ 1